

Supreme Court of the State of New York
Appellate Division, First Judicial Department

Present – Hon. Troy K. Webber,
Peter H. Moulton
Julio Rodriguez III
Marsha D. Michael,

Justice Presiding,

Justices.

Andres Jimenez,
Plaintiff-Appellant-Respondent,

Motion Nos. **2025-06878**
2026-00040
2026-00041

-against-

Index No. 2025-05322

Case No. 151443/18
2024-06385

St. Nicholas Avenue Housing Development
Fund Corp., and H.S.C. Management Corp.,
Defendants-Respondents-
Appellants.

St. Nicholas Avenue Housing Development
Fund Corp., and H.S.C. Management Corp.,
Third-Party Plaintiffs-Respondents-
Appellants,

-against-

Fitsum Netsanet,
Third-Party Defendant-Respondent-
Appellant.

Appeals having taken to this Court from an order of the Supreme Court, New York County, entered on or about September 30, 2024,

And defendants/third-party plaintiffs-respondents-appellants having moved, pursuant to 22 NYCRR 1250.10(c), to vacate the dismissal of their appeal, and, upon vacatur, for an extension of time in which to perfect same (Motion No. 2025-06878),

And plaintiff-appellant-respondent having moved for an extension of time in which to perfect their appeal (Motion No. 2026-00040),

And third-party defendant-respondent-appellant having moved for an extension of time in which to perfect their appeal (Motion No. 2026-00041),

Now, upon reading and filing the papers with respect to the motions, and due deliberation having been had thereon,

It is ordered that defendants/third-party plaintiffs-respondents-appellants' motion is granted to the extent of vacating the dismissal and reinstating their appeal, and extending the time in which to perfect same to the September 2026 Term of this Court (Motion No. 2025-06878),

And it is further ordered that plaintiff-appellant-respondent's and third-party defendant-respondent-appellant's motions are granted to the extent of extending the time in which to perfect their respective appeals to the September 2026 Term of this Court (Motion Nos. 2026-00040 and 2026-00041).

ENTERED: March 03, 2026

A handwritten signature in black ink, appearing to read 'Susanna Molina Rojas', with a stylized, cursive script.

Susanna Molina Rojas
Clerk of the Court